DV-120 Response to Request for Domestic Violence Restraining Order

Clerk stamps date here when form is filed.

Use this form if someone has asked for a domestic violence restraining order against you, and you want to respond in writing. There is no cost to file this form with the court. You will need a copy of the form (DV-100, *Request for Domestic Violence Restraining Order)* that was filled out by the person who asked for a restraining order against you.
Do not use this form to ask for your own restraining order. Read form DV-500-INFO, *Can a Domestic Violence Restraining Order Help Me?* to find out more about this type of restraining order.

Fill in court name and street address:

Superior Court of California, County of

Fill in case number:

Case Number:

1 Name of Person Asking for Protection:

(See form DV-100, item 1):

_____

2 Your Name: _____

! Address where you can receive court papers

(**This address will be used by the court and by the person in 1 to send you official court dates, orders, and papers**. For privacy, you may use another address like a post office box, a Safe at Home address, or another person's address, if you have their permission and can get your mail regularly. If you have a lawyer, give their information.)

Address: _____

City: _____ State: _____ Zip: _____

! Your contact information *(optional)*

(The court could use this information to contact you. If you don't want the person in 1 to have this information, leave it blank or provide a safe phone number or email address. If you have a lawyer, give their information.)

Email Address: _____ Telephone: _____ Fax: _____

Your lawyer's information *(if you have one)*

Name: _____ State Bar No.: _____

Firm Name: _____

3 Your Hearing Date (Court Date)



Your hearing date is listed on form DV-109, *Notice of Court Hearing*. If you do not agree to having a restraining order against you, attend your hearing date. If you do not attend your hearing, the judge could grant a restraining order that could last up to five years.

This is not a Court Order.

How to complete this form: To answer the questions below, look at the form DV-100 filled out by the person in (1). Tip: When the restraining order forms say "the person in (2)," that means you, and the "person in (1)" means the person who is asking for a restraining order against you.

4 Information About You *(see item 2 on form DV-100)*

The person in (1) listed your name, age, gender, and date of birth. If any of the information is incorrect, use the space below to give the correct information.

5 Your Relationship to the Person in 1

In item 3 of form DV-100, has the person in (1) correctly described your relationship with them?

☐ Yes ☐ No If no, what is your relationship with the person in (1)?:

6 History of Court Cases and Restraining Orders *(see item 4 on form DV-100)*

The person in (1) may have listed other court cases or restraining orders involving you. If information is incorrect or missing, use the space below to give information.

☐ Check here if you are including a copy of restraining order or court order that you want the judge to know about.

7 ☐ Other Protected People

If the judge grants a restraining order, it can include family or household members of the person in (1). See item 8 on form DV-100 to see if the person in (1) is asking for other people to be protected by the restraining order.

a. ☐ I agree to the order requested.

b. ☐ I do not agree to the order requested.

Explain why you disagree, or describe a different order that you would agree to:

8 ☐ Order to Not Abuse *(see item 10 on form DV-100)*

a. ☐ I agree to the order requested.

b. ☐ I do not agree to the order requested.

Explain why you disagree, or describe a different order that you would agree to:

This is not a Court Order.

9 ☐ **No-Contact Order** *(see item 11 on form DV-100)*

a. ☐ I agree to the order requested.

b. ☐ I do not agree to the order requested.

Explain why you disagree, or describe a different order that you would agree to: _____

_____

10 ☐ **Stay-Away Order** *(see item 12 on form DV-100)*

a. ☐ I agree to the orders requested.

b. ☐ I do not agree to the orders requested.

Explain why you disagree, or describe a different order that you would agree to: _____

_____

11 ☐ **Order to Move Out** *(see item 13 on form DV-100)*

a. ☐ I agree to the order requested.

b. ☐ I do not agree to the order requested.

Explain why you disagree, or describe a different order that you would agree to: _____

_____

12 ☐ **Other Orders** *(see item 14 on form DV-100)*

a. ☐ I agree to the order requested.

b. ☐ I do not agree to the order requested.

Explain why you disagree, or describe a different order that you would agree to: _____

_____

13 ☐ **Child Custody and Visitation** *(see item 15 on form DV-100 and DV-105)*

a. ☐ I am **not** the parent of the children listed in form DV-105, *Request for Child Custody and Visitation Orders*

b. ☐ I am the parent of the children listed in form DV-105 and *(check one):*

(1) ☐ I agree to the orders requested.

(2) ☐ I do not agree to the orders requested. (Complete form DV-125, *Response to Request for Child Custody and Visitation Orders*, and attach it to this form.)

This is not a Court Order.

14 ☐ **Protect Animals** *(see item 16 on form DV-100)*

a. ☐ I agree to the orders requested.

b. ☐ I do not agree to the orders requested.

Explain why you disagree, or describe a different order that you would agree to: _____

_____

15 ☐ **Control of Property** *(see item 17 on form DV-100)*

a. ☐ I agree to the order requested.

b. ☐ I do not agree to the order requested.

Explain why you disagree, or describe a different order that you would agree to: _____

_____

16 ☐ **Health and Other Insurance** *(see item 18 on form DV-100)*

a. ☐ I agree to the order requested.

b. ☐ I do not agree to the order requested.

Explain why you disagree, or describe a different order that you would agree to: _____

_____

17 ☐ **Record Communications** *(see item 19 on form DV-100)*

a. ☐ I agree to the order requested.

b. ☐ I do not agree to the order requested.

18 ☐ **Property Restraint** *(see item 20 on form DV-100)*

a. ☐ I agree to the order requested.

b. ☐ I do not agree to the order requested.

Explain why you disagree, or describe a different order that you would agree to: _____

_____

19 ☐ **Pay Debt (Bills) Owed for Property** (*see item 22 on form DV-100*)

a. ☐ I agree to the orders requested.

b. ☐ I do not agree to the orders requested.

Explain why you disagree, or describe a different order that you would agree to: _____

_____

This is not a Court Order.

20 ☐ Pay Expenses Caused by the Abuse *(see item 23 on form DV-100)*

a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested.
Explain why you disagree, or describe a different order that you would agree to: _____

21 ☐ Child Support *(see item 24 on form DV-100)*

a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested.
c. ☐ I agree to pay guideline child support. *(Learn more about guideline child support at selfhelp.courts.ca.gov/child-support .)*

22 ☐ Spousal Support *(see item 25 on form DV-100)*

a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested.
Explain why you disagree, or describe a different order that you would agree to: _____

23 ☐ Lawyer's Fees and Costs

If the person in 1 checked item 26 on form DV-100, this means that they have asked the judge to order you to pay their lawyer's fees and costs. You may also ask for lawyer's fees and costs. The judge can order the person in 1 to pay for your lawyer's fees and cost if:

(1) The person in 1's request for restraining order is denied;
(2) The judge decides that the request was frivolous or was made only to abuse, intimidate, or cause unneeded delay; and
(3) The person in 1 can afford to pay for your lawyer's fees and costs.

☐ Check here if you want the person in 1 to pay for some or all of your lawyer's fees and costs.

24 ☐ Batterer Intervention Program *(see item 27 on form DV-100)*

a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested.
Explain why you disagree, or describe a different order that you would agree to: _____

This is not a Court Order.

25 ☐ Transfer Wireless Phone Account *(see item 28 on form DV-100)*

a. ☐ I agree to the order requested.

b. ☐ I do not agree to the order requested.

Explain why you disagree, or describe a different order that you would agree to: _____

_____

26 Firearms (Guns), Firearm Parts, or Ammunition *(see item 29 on form DV-100)*

(!) If you were served with form DV-110, *Temporary Restraining Order*, you must follow the orders in item 5 on form DV-110. You must file a receipt with the court from the law enforcement agency or a licensed gun dealer within 48 hours after you received form DV-110. You may use form DV-800/JV-270 , *Receipt for Firearms, Firearm Parts, and Ammunition*.

(Check all that apply):

a. ☐ I do not own or have any prohibited items (firearms (guns), prohibited firearm parts, or ammunition).

b. ☐ I have turned in all prohibited items that I have or own to law enforcement or sold/stored them with a licensed gun dealer. A copy of the receipt showing that I turned in, sold, or stored the prohibited items *(check all that apply):*

☐ is attached

☐ has already been filed with the court.

c. ☐ I ask for an exception to carry a firearm or ammunition for work. *(Complete (1)–(3) below):*

(1) Are you a sworn peace officer?

☐ No

☐ Yes

(2) Are there any orders or state or federal laws that prohibit you from having firearms or ammunition?

☐ No

☐ Yes *(explain):* _____

☐ I don't know *(explain):* _____

(3) *(Explain what your job is and why you need a firearm or ammunition):* _____

_____

_____

Note: You **must** follow any orders to turn in, sell, or store prohibited items until the judge decides whether to grant you an exception. Before an exception can be granted, you will be required to show the judge that (1) carrying a firearm or ammunition is required for your work and (2) your employer is unable to reassign you to another position where carrying a firearm or ammunition is not necessary. There are other things you will need to prove. For more information on what you need to show the judge to qualify for this exception, go to selfhelp.courts.ca.gov/respond-to-DV-restraining-order/obey-firearms-orders/exception, or see Family Code section 6389(h).

This is not a Court Order.

27 No Body Armor *(see item 30 on form DV-100)*

If you were served with form DV-110, *Temporary Restraining Order*, you are prohibited from owning, possessing, or buying body armor. You must also relinquish any body armor you have in your possession.

(Check all that apply):

a. ☐ I do not own or have any body armor.

b. ☐ I have relinquished all body armor that I have in my possession.

c. ☐ I was granted an exception, or will ask for an exception, to have body armor. Note: this exception is granted by a chief of police or sheriff under Penal Code section 31360(c). *(Attach a copy of the letter granting permission, if you have one.)*

28 Cannot Look for Protected People *(see item 31 on form DV-100)*

a. ☐ I agree to the order.

b. ☐ I do not agree to the order.

Explain why you disagree, or describe a different order that you would agree to: _____

_____

29 ☐ Additional Reasons I Do Not Agree with the Request *(optional)*

Explain why you do not agree to any of the orders requested by the person in 1 *(give specific facts and reasons):*

_____

_____

_____

_____

_____

_____

_____

_____

_____

☐ Check here if you need more space. Attach a sheet of paper and write "DV-120, Additional Reasons I Do Not Agree with the Request" at the top.

This is not a Court Order.

30 ☐ My Out-of-Pocket Expenses

If the request for restraining order is denied by the judge at the court hearing, I ask the judge to order the person in 1 to pay my out-of-pocket expenses because the temporary restraining order was granted without enough supporting facts. The expenses are:

For: _____ Because: _____ Amount: $ _____
For: _____ Because: _____ Amount: $ _____
For: _____ Because: _____ Amount: $ _____

31 Additional Pages

Number of pages attached to this form, if any: _____

32 Your Signature

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: _____

_____ ▶ _____
Type or print your name *Sign your name*

33 Your Lawyer's Signature *(if you have one)*

Date: _____

_____ ▶ _____
Lawyer's name *Lawyer's signature*

Your Next Steps

- Turn in your completed form with the court.
- If the person in 1 asked for child support, spousal support, or lawyer's fees, you must complete form FL-150, *Income and Expense Declaration*. If the person in 1 is only asking for child support (item 24 on form DV-100), you may be eligible to fill out a simpler form, form FL-155. Read form DV-570 to see if you are eligible to fill out form FL-155. Before your court date, you must file form FL-150 or FL-155 with the court.
- Have someone else (not you) mail the person in 1 a copy of your forms, and complete form DV-250, *Proof of Service by Mail*. File form DV-250 with the court. *(The person who mails the forms must be at least 18 years old and cannot be you or someone protected on the restraining order.)*
- Prepare for your court date by gathering evidence or witnesses, if you have any. Learn more at selfhelp.courts.ca.gov/respond-domestic-violence-restraining-order. More information is also available on form DV-120-INFO, *How Can I Respond to a Request for Domestic Violence Restraining Order?*

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For your protection and privacy, please press the Clear button after you have printed the form.

Print Save Clear